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COMMONWEALTH OF KENTUCKY
SUPREME COURT OF KENTUCKY
2024-SC-371-D

MERCY REGIONAL EMERGENCY MEDICAL SYSTEM, LLC
SCOTT HENDRICKSON APPELLANTS

v. **ON DISCRETIONARY REVIEW FROM COURT OF APPEALS**
NO. 2023-CA-1242
APPEAL FROM MCRACKEN CIRCUIT COURT
CIVIL ACTION NO. 19-CI-00261
HON. JOSEPH ROARK

THE ESTATE OF JOSHUA ADAM FUSON, by administratrixes,
AMY HICKMAN & DAFFENY SNEED FUSON,
VICTORIA PAIGE FUSON, and
AUBREY GRACE FUSON, a minor by and through her mother
and next of friend AMY HICKMAN APPELLEES

BRIEF FOR APPELLANT

Respectfully submitted,

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CERTIFICATE OF SERVICE

I hereby certify that I have electronically filed the foregoing with the clerk of the court, which will send a notice of electronic filing to **Kelly Stephens**, Clerk of the Supreme Court of Kentucky, State Capitol, Room 209, 700 Capital Avenue, Frankfort, KY 40601; I further certify that true and correct copies of the foregoing has been served by regular mail upon **Kate Morgan**, Clerk of the Kentucky Court of Appeals, 300 Democrat Drive, Frankfort, KY 40601-9229; **Hon. Joseph Roark**, McCracken County Courthouse, 300 Clarence Gaines St., Paducah, KY 42003; and **D. Chad McCoy, Esq**., chad@mhsattorneys.com, 114 S. 3rd Street, Bardstown, KY 40004; this 9th day of May 2025. I further certify that the record on appeal was not withdrawn by Movant.

By: /s/ James Sigler
James A. Sigler, Esq.

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INTRODUCTION

On September 19, 2023, the McCracken Circuit Court correctly granted summary judgment in favor of Mercy Regional EMS and Scott Hendrickson on V.P.F. and A.G.F.'s loss of parental consortium claims against them, holding that V.P.F. and A.G.F.'s claims filed against Mercy Regional EMS and Scott Hendrickson approximately **3 years and 4 months** after V.P.F. and A.G.F. filed their complaint in this action and approximately **4 years and 4 months** after Adam Fuson passed away were barred by the applicable statutes of limitation and that the prosecution of Adam Fuson's minor children's claims against certain defendants waived the tolling of the statute of limitations for all claims stemming from the same nucleus of fact.

On July 12, 2024, the Commonwealth of Kentucky Court of Appeals reversed, in part, erroneously holding that KRS 413.170(1) tolled the statute of limitations for V.P.F. and A.G.F.'s claim due to their minority, despite V.P.F. and A.G.F. demonstrating their ability, right, and capacity to sue by obtaining counsel, sending a pre-litigation preservation letter to Mercy Regional EMS, filing suit, engaging in discovery and motion practice, deposing various individuals including Scott Hendrickson and another Mercy Regional EMS, and subpoenaing documents form non-parties including Mercy Regional EMS, all before adding Mercy Regional EMS and Scott Hendrickson as a party to this lawsuit.

STATEMENT CONCERNING ORAL ARGUMENT

Mercy Regional EMS and Scott Hendrickson do not believe that oral argument would assist the Court in understanding key issues necessary to rule on this appeal. While of substantial importance, the matters are straightforward and not particularly complex. Notwithstanding, the Court designated this appeal for oral argument pursuant to RAP 38.

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STATEMENT OF THE CASE

The procedural history of this case is pertinent to the analysis of the McCracken Circuit Court's opinion granting Mercy Regional EMS and Scott Hendrickson summary judgment due to the expiration of the statute of limitations. Mercy Regional EMS and Hendrickson vehemently and categorically deny any negligence or wrongdoing. Mercy Regional EMS and Hendrickson complied with their respective standard of care owed to Adam Fuson and did not cause him injury, and as a result, his minor[1] children's claims for loss of consortium are without merit.

On **April 10, 2018**, **349 days** before the Estate of Joshua Adam Fuson (the "Estate") and V.P.F.[2] and A.G.F.[3] (hereinafter collectively referred to as "Minor Children"), filed their Complaint (March 25, 2019 (TR. 1, Complaint)) and **4 years and 3 months** before the Minor Children moved for leave to assert their Second Amended Complaint (July 27, 2022, R. 880-918, "Second Amended Complaint") adding Mercy Regional EMS and Scott Hendrickson as parties to this litigation, the Minor Children's attorney sent Mercy Regional EMS a letter advising that the Estate of Joshua Adam Fuson was investigating the facts relating to the death of Fuson and demanding that Mercy Regional EMS preserve certain

[1] As of the filing of this brief. The minor children are over the age of 18.

[2] V.P.F. reached the age of majority in September of 2022. (Deposition of V.P.F., March 22, 2023, 13-14). On August 16, 2023, the parties tendered an agreed order substituting V.P.F. as the real party in interest in place of her next of friend Amy Hickman. The order is not a part of the Certified Record on appeal, (*See* Certification of Record on Appeal, p. 46 of 54), and the McCracken Circuit Court did not enter the order. Although no longer a minor, V.P.F. was a minor at the time the Minor Children filed their Second Amended Complaint and is referred to as a minor herein.

[3] A.G.F. reached the age of majority at the beginning of December 2024. (Deposition of A.G.F., July 18, 2023, 9-10). Should the Court affirm the ruling of the Kentucky Court of Appeals, Mercy Regional EMS and Hendrickson will move to have A.G.F. substituted as the real party in interest in place of her next of friend Amy Hickman for the trial of this matter.

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tangible evidence and materials pertaining to Fuson's death. (TR. 2273, Letter from Chad McCoy, Esq., dated **April 10, 2018**). In pertinent part, the letter stated:

Mercy Regional EMS
3551 Coleman Road
Paducah, KY 42001

RE: Joshua Adam Fuson - Demand for Preservation of Evidence

Dear Sir/Madam:

My firm has been retained to represent the Estate of Joshua Adam Fuson. We are currently investigating the facts relating to the death of Mr. Fuson that occurred on or about March 25, 2018. Accordingly, we are writing to demand that any and all tangible evidence and materials seven (7) days prior to and seven (7) days after March 25, 2018 and any other materials concerning this matter be preserved until this matter can be finally resolved, including but not limited to:

1. Any and all reports, records, memoranda, notes, meeting records, electronic generated messages (e-mail);
2. Any and all relevant policies and procedure manuals;
3. Any and all logs, dispatch materials, audio and/or visual tape recordings (including, but not limited to body cams), photographs, maps, diagrams, recorded statements, recorded telephone conversations, written and/or transcribed statements;
4. Any and all files relating to the personnel involved in this matter;
5. Any investigative statements taken from anyone;
6. Any other document or tangible thing that is or could possibly be relevant to the facts surrounding the death of Joshua Adam Fuson or that might be considered evidence in this matter.

Thank you for your anticipated cooperation.

Sincerely,

McCOY, HIESTAND & SMITH, PLC

D. Chad McCoy

(*Id*.).

Less than one year after sending Mercy Regional EMS a preservation letter, on **March 25, 2019**, the Minor Children filed their complaint against City of Paducah, Kentucky, Cassandra Skinner, Joshua Bryant, Adam Winebarger, Tonya Ray, Stephen Guerts, Joshua Armstrong, Southern Health Partners, Inc., John Ramsey, and Jane/John

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Does 1-5[4]. (TR. 1, Complaint). The complaint contains several references to Mercy Regional EMS; however, Mercy Regional EMS and Scott Hendrickson were not named as defendants in March of 2019. (*Id.* Comp. at ¶¶ 16, 18, 24). In particular,

Facts

16. On or about March 25, 2018, EMS was called to the residence of Adam Fuson in Paducah, Kentucky as family was concerned about his behavior.

17. Instead of an ambulance arriving, the Paducah Police Department arrived on scene. The officers, without justification, physically arrested and detained Adam until the ambulance arrived.

18. Once the ambulance arrived, Adam was turned over to EMS. However, Adam left the EMS personnel and began to run.

(*id.* Comp. at ¶¶ 16, 18), and

22. Adam was placed in solitary confinement with an inmate assigned to watch over him and another inmate in two different cells.

23. The inmate assigned to watch him reported that he was unresponsive and jail medical personnel along with jail guards, all named above, responded.

24. EMS was again called and CPR was performed on Adam.

25. Ultimately, Adam was taken to Baptist Health Paducah where he died a few days later.

[4] On January 17, 2024, the Bell District Court entered an Order Approving Settlement of Aubrey Fuson's claims against Southern Health Partners, McCracken County Jail, and City of Paducah, Kentucky, and their respective employees and agents [Skinner, Bryant, Winebarger, Ray, Guerts, Armstrong, and Ramsey]. (*See* Exhibit H to Appellees' Appendix). These defendants are no longer parties to this action. This order was entered after the Minor Children filed their notice of appeal, and the order is not part of the Certified Record on Appeal. The Court may, and is requested, to take judicial notice of the Order Approving Settlement. *See, e.g., Collins v. Combs*, 320 S.W.3d 669, 678 (Ky. 2010).

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(*Id.* at ¶ 24).

On **June 11, 2019**, City of Paducah, Kentucky produced video footage from multiple Paducah police officer's body worn cameras and in-car cameras. (TR. 2311-2333, 2326, Defendant City of Paducah, Kentucky's Answers to the Minor Children's First Set of Interrogatories and Responses to Requests for Production of Documents, Request No. 3). The video footage shows Hendrickson, Fuson, and Paducah police officers' interactions with each other. (*Id.*; *see also* TR. 1550, Bryant Body Cam Video (1758); TR. 1551, Rolens' Body Cam Video (1759); TR. 1552, Gholson Body Cam Video, (Fuson.mp4); TR. 1553, Wilson In-Car Video (1.mp4); TR. 975, Antonites Body Cam Video (1830); Certification of Record on Appeal, Manila Envelope, dated Aug. 18, 2023, p. 47 of 54, Skinner Body Cam Video (1819) at 9:00 to 9:07). Video footage from Defendant Skinner's body worn camera depicts Fuson kicking and spiting on Hendrickson and Mercy Regional EMS EMT Jacob Womble, as well as Hendrickson and Womble refusing to provide Fuson with care due to Fuson's combative behavior and their fear for their personal safety. (Certification of Record on Appeal, Manila Envelope, dated Aug. 18, 2023, p. 47 of 54, Skinner Body Cam Video (1819) at 9:00 to 9:07; *see also* Hendrickson Dep., March 21, 2022, 18-20).

On **June 26, 2019**, the Minor Children moved for leave to file their first amended complaint, which added Ofc. Kevin Wilson as a defendant to the lawsuit. (TR. 130-45, Motion to Amend). The Minor Children **did not add** Mercy Regional EMS or Hendrickson as a party to this litigation at this time.

In **July and October of 2020**, the Minor Children deposed Ofc. Joshua Bryant, Ofc. Cassandra Skinner, and Ofc. Kevin Wilson, three officers of the Paducah Police

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Department who were named in their individual capacity as defendants to this lawsuit. (Deposition of Officer Joshua Bryant, July 14, 2020; Deposition of Officer Cassandra Skinner, October 19, 2020; Deposition of Officer Kevin Wilson, October 21, 2020). All three officers testified that Mercy Regional EMS refused to treat Fuson due to his combative state, and that they did not hear Mercy Regional EMS instruct the Paducah police officers to take Fuson to the hospital. On **July 14, 2020**, Ofc. Bryant testified, in part, as follows:

> Q. When you went to put [Fuson] in the car, did EMS say anything to you at all about whether or not he needed to go to the hospital?
>
> A. Not to me. And I did not overhear him say it to anybody else either.

(Bryant Dep. at pp. 133-34). On **October 19, 2020**, Plaintiff deposed Ofc. Cassandra Skinner. As with Ofc. Bryant, Ofc. Skinner testified that Mercy Regional EMS did not instruct the Paducah police officers to take Fuson to the hospital:

> Q. Just tell me everything you can remember and we can go back.
>
> A. The ambulance shows up. He gets combative with the ambulance people. They refuse to look at him anymore.
>
> Q. Because he's combative?
>
> A. Yes.
>
> Q. Okay.
>
> A. We put him in Sergeant Bryant's patrol car and took him to the jail.

(Skinner Dep. at pp. 47). Similar to Ofc. Skinner and Ofc. Bryant, Ofc. Kevin Wilson testified that it was his understanding that Fuson was taken to jail as opposed to the hospital because Mercy Regional EMS refused to treat Fuson after he was combative, and it was believed the hospital would also refuse to treat Fuson. (Wilson Dep. at pp. 79-81).

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Additionally, The Minor Children were in possession, custody, and control of Fuson's Patient Care Record and Fuson's Refusal of Medical Treatment and/or Transport completed by Mercy Regional EMS prior to the initiation of this lawsuit. (TR. 2273, Letter from Chad McCoy, Esq., dated April 10, 2018).

The Patient Care Record indicates that Fuson was evaluated and "No Treatment/Transport Required." (TR. 2162-67, 2165, Patient Care Record).



(*Id.*) (emphasis added). Which is consistent with the preceding Narrative, stating "E – No treatment or transport." (*Id.*). The Clinical Impression section of the Patient Care Record also informed The Minor Children, in part, that (1) there were no patient complaints by Fuson, (2) Fuson refused care, (3) Fuson displayed a moderate level of distress, and (4) Mercy assessed Fuson's acuity level as "Lower Acuity (Green)." (*Id.* at TR. 2162).

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Clinical Impression			
Primary Impression	Behavioral/psychiatric episode		
Secondary Impression			
Protocol Used	Patient Refusal		
Anatomic Position	General/Global		
Onset Time			
Last Known Well			
Chief Complaint	no complaints		
Duration	4	Units	Hours
Secondary Complaint	no patient complaint		
Duration		Units	
Patient's Level of Distress	Moderate		
Signs & Symptoms	Other - meth use Other - taser eval		
Injury	Firearms - Firearm Injury (Assault) - Street or Highway - 03/25/2018		
Additional Injury			
Mechanism of Injury			
Medical/Trauma	Medical & Trauma		
Barriers of Care	None Noted		
Alcohol/Drugs	Patient Admits to Drug Use		
Pregnancy	No		
Initial Patient Acuity	Lower Acuity (Green)		

(*Id.*) (emphasis added).

As with the Patient Care Record for Fuson, his Refusal of Medical Treatment and/or Transport form indicates Fuson's intent not to seek Mercy's care and treatment. The Refusal of Medical Treatment and/or Transport form completed by Mercy Regional EMS EMT Jacob Womble states, "visit ER if needed." (TR. 2169, Patient Care Report).

On **July 27, 2022 – 3 years and 4 months** after the Minor Children filed their complaint – the Minor Children moved for leave to file their Second Amended Complaint,

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adding Mercy Regional EMS and Scott Hendrickson as defendants to this lawsuit. (TR. 880-918, Motion to Amend). The motion was granted and the second amended complaint deemed filed on **September 21, 2022**. (TR. 1019-21, Order).

On April 13, 2023, the Minor Children disclosed Jim Duke as a paramedic expert. (TR. 1156-59, Update To Plaintiffs' Rule 26 Expert Disclosure; *see also* TR. 1174-75). Duke, opined in part,

> i) It does not appear that Mr. Hendrickson made a clear recommendation to the Law Enforcement Officer that his recommendation was that the Patient should be transported by Law Enforcement to the hospital immediately.
>
> j) Hospital treatment for Mr. Fuson was the appropriate medical intervention given his indicated drug use, behavior and information from the 911 call.
>
> k) There is no evidence that the EMS crew and the police department discussed his transport to jail versus hospital.

(*Id.* at TR. 1158).

In addition, Mercy Regional EMS adopts and incorporates, in part, the McCracken Circuit Court's statement of facts:

> The facts of the case are not disputed. On March 25, 2018, Fuson ingested methamphetamine and his family called 9ll for assistance. [Deposition of Lem Fuson, March 21, 2023, 53; Deposition of Travis Fuson, Aug. 24, 2021, 34, 60-65, 67, 76]. Officers from the Paducah Police Department and staff with Mercy Regional responded to an apartment in Paducah. [Bryant Dep. at 97; Wilson Dep. at 31]. Even considering his impaired state due to the methamphetamine ingestion, Fuson refused treatment from Mercy Regional by initially running from the apartment complex while being escorted to the ambulance for examination. [Wilson Dep. at 34; Deposition of Jacon Womble, March 21, 2022, 11]. Officers from the Paducah Police Department pursued Fuson. [Bryant Dep. at 113-14; Wilson Dep. at 34-35, 70, 75, 114, 118-19]. While fleeing, Fuson unsuccessfully attempted to gain entry to a car of a person he did not know. [Deposition of Nathan Antonites, Dec. 20, 2022, 24; TR. 975, Antonites Body Cam Video (1830) :13 to 2:58]. Within moments, Fuson was located by Paducah Police officers. [Wilson Dep. at 35]. A physical struggle ensued wherein Fuson fought with officers, threw rocks at officers, physically assaulted officers, and verbally

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> threatened officers. [Wilson Dep. at 35-36, 56, 58, 71, 79-80; TR. 1553, Wilson In-Car Video (1.mp4), 16:10 to 16:20; Skinner Dep. at 41-47; Bryant Dep. at 118-19]. Fuson was temporarily subdued, and Mercy Regional was asked to return to the scene to evaluate his condition. [S. Hendrickson Dep., March 21, 2022, 11, 19; S. Hendrickson Dep., May 8, 2023, 48-49, 51-53].
>
> While attempting treatment, Fuson refused treatment from Mercy Regional a second time by spitting in the ear of Hendrickson, kicking and yelling at first responders, and continuing to verbally threaten first responders. [Hendrickson Dep., March 21, 2022, 13, 18; Womble Dep. at 13; Skinner Dep. at 47; Bryant Dep. at 89; Wilson Dep. at 39, 60-61]. Fuson was arrested and taken to the McCracken County Jail. [Antonites Dep. at 30, 56-57; Hendrickson Dep. May 8, 2023, 63, 68-69; Hendrickson Dep., March 21, 2022, 34]. While in custody at the McCracken County Jail, Fuson suffered from cardiac arrest. He was transported by Mercy Regional to Baptist Health where he was pronounced dead on March 27, 2018. … **It is not disputed that from the very outset of the incident, that Plaintiffs were aware of the role and involvement of Mercy Regional in the treatment of Fuson.**

(TR. 2388-2393, Order Granting Summary Judgment) (Emphasis and citations to the Certified Record on Appeal added).

ARGUMENT

The McCracken Circuit Court and the Kentucky Court of Appeals agree that the Estate of Adam Fuson's claims for negligence and wrongful death against Mercy Regional EMS and Scott Hendrickson are untimely and the discovery rule does not apply to such claims, *Estate of Fuson by Hickman v. Mercy Regional Emergency Medical System, LLC*, 2023-CA-1242-MR, 2024 WL 3381440, at **2-3 (Ky. App. July 12, 2024), *review granted* (Mar. 12, 2025), *not to be published*, and neither the Minor Children nor the Estate have moved this Court for cross-discretionary review of the appellate court's decision. The Supreme Court has previously explained:

> Our rules are specific that if the motion for discretionary review made by the losing party in the Court of Appeals is granted, it is then incumbent upon the prevailing party in the Court of Appeals to file a cross-motion for

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> discretionary review if respondent wishes to preserve the right to argue issues which respondent lost in the Court of Appeals, or issues the Court of Appeals decided not to address. If the party prevailing in the Court of Appeals wishes further consideration of such issues along with the issues for which discretionary review has been granted, the prevailing party must file a cross motion for discretionary review.

Perry v. Williamson, 824 S.W.2d 869, 871 (Ky. 1992); *see also* RAP 46(A). Again, the Estate and the Minor Children did not file a cross motion for discretionary review. As a result, the Estate's claims and the discovery rule are not at issue before the Court.

The Minor Children cannot credibly argue that they filed their claim for loss of parental consortium within the one-year statute of limitations; thus, the only legitimate issue before this Court is whether the Minor Children's claims were tolled under the facts and circumstances **specific** to this case, i.e., whether a minor child's prosecution of claims against some defendants waives tolling of the statute of limitations due to his/her minority and starts the running of the statute of limitations for all claims from the same transactional nucleus of facts.

I. The Minor Children filed their loss of consortium claims against Mercy Regional EMS and Hendrickson outside of the one-year statute of limitations.[5]

The Minor Children bear the burden of proving their claims against Mercy Regional EMS and Scott Hendrickson are timely. "Once the statute of limitations is raised, the burden falls on the complainant to prove such facts as would toll the statute" of limitations. *Southeastern Kentucky Baptist Hosp., Inv. v. Gaylor*, 756 S.W.2d 467, 469 (Ky. 1988). A

[5] This issue and these arguments were preserved for appeal when Mercy Regional EMS raised the issue and arguments in their Memorandum in Support of Motion for Summary Judgment, TR 1310-18; *id.* at 1315-15; *id.* at 1315-16, and re-raised these arguments in their Appellee Brief, pp. 16-23.

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claim for loss of consortium is required to be brought within one year after the injury (i.e., death). *Floyd v. Gray*, 657 S.W.2d 936, 938 (Ky. 1983).

The Minor Children failed to timely file their claims against Mercy by **March 27, 2019,** based on the procedural history of this litigation. Fuson was pronounced dead on March 27, 2018. (TR. 409, Death Certificate). One year from March 27, 2018, is March 27, 2019. The Minor Children's claims for loss of consortium were untimely filed **in September of 2022**, over three years after the one-year statute of limitations expired, and as a result, the Minor Children's claims for loss of consortium are barred by the applicable statute of limitations – absent tolling, which is not applicable due to the Minor Children prosecuting their claims by and through their mother and next friend.

II. The McCracken Circuit Court correctly held that the Minor Children's prosecution of their claims against some defendants waived any tolling of the statute of limitations due to their minority and started the running of the statute of limitations for all claims from the same transactional nucleus of facts.[6]

While the Supreme Court can quickly and confidently hold the Minor Children's claims were filed outside of the one-year statute of limitations, the second issue – tolling of the Minor Children's claims – is undoubtedly the thornier issue. Prior to the appellate court's opinion in this matter, only one unpublished, non-binding opinion from a Kentucky Court provided the McCracken Circuit Court with any guidance as to the timeliness of the Minor Children's claims in this action.

[6] This issue and these arguments were preserved for appeal when Mercy Regional EMS raised the issue and arguments in their Memorandum in Support of Motion for Summary Judgment, TR 1310-18; *id.* at 1315-15; *id.* at 1315-16, and re-raised these arguments in their Appellee Brief, pp. 16-23.

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The Kentucky Court of Appeals' unpublished, nonbinding opinion in *Tallman v. City of Elizabethtown*, No. 2006-CA-2542-MR, 2007 WL 3227599, at *3 (Ky. App. Nov. 2, 2007)[7] is instructive to the instant action. In *Tallman*, the appellate court held that minor children's claims for loss of parental consortium were not tolled by KRS 413.170(1) **when the children's claims were prosecuted on their behalf by their mother**, as guardian and next friend. *Id.* The appellate court recognized that the statute of limitations barred the minor children's claims because the plaintiffs elected to initiate litigation through a next of friend:

> The Estate alternatively argues that the minor children's claims for loss of parental consortium were not barred by the statute of limitations. The Estate contends that KRS 413.170(1) tolls the limitations period of a minor's state law claim until the minor reaches majority. Here, however, the children's claims were prosecuted on their behalf by their mother, as guardian and next friend. In light of the procedural history of this case, we are not persuaded that KRS 413.170(1) tolled the children's claims, and the Estate offers no other authority to support its position. Consequently, we find this argument to be without merit.

Id.

The procedural history in *Tallman* is similar to the procedural history in the instant litigation. In *Tallman*,

- On July 3, 2001, decedent died;
- In **June 2002**, the Estate and decedent's minor children, by and through their next friend, filed suit in federal court asserting federal and state-law claims, including a claim for loss of parental consortium;
- On May 24, 2004, the federal court granted summary judgment in favor of defendants on the federal claims, withheld ruling on the state-law claims, and dismissed the state-law claims without prejudice;

[7] In accordance with RAP 41, this opinion was issued after January 1, 2003, and it is final under RAP 40(G). Moreover, this is the only opinion issued by Kentucky's appellate courts that adequately addresses the issue of law before the Court. A copy of this unpublished, non-binding opinion is attached hereto as Exhibit G.

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- In June 2004, the plaintiffs appealed the federal court's decision;
- On January 23, 2006, the Sixth Circuit affirmed the district court's grant of summary judgment; and
- In **April 2006**, the plaintiffs filed a wrongful death lawsuit asserting claims for loss of parental consortium in state court.

2007 WL 3227599, at *3. **Four years** passed between the filing of the loss of parental consortium claim in federal court and the filing of the loss of parental consortium claim in state court. *Id.*

In this litigation, the Minor Children's disability was lifted when their mother became their next of friend by operation of law and filed the instant action. At that point in time, the Minor Children's statute of limitations for all claims arising from the same transaction or event accrued. Indeed, this act initiated the litigation in the Minor Children's names by their next of friend. *See, e.g., Cozine v. Bonnick*, 245 S.W.2d 935, 937 (Ky. 1952). In both *Tallman* and the instant action, the Minor Children's claims were prosecuted on their behalf by their mother. However, unlike the defendants in *Tallman*, who were named as parties to the federal action, Mercy Regional EMS and Scott Hendrickson were not named as original parties in the complaint and the Minor Children conducted extensive discovery and aggressively litigated their claims to the exclusion of Mercy Regional EMS and Hendrickson prior to their addition as parties. As with *Tallman*, where the plaintiffs waited 4 years after filing their federal claims to first assert their loss of consortium claims in state court, **three years and 4 months**[8] passed between the Minor Children's filing of the complaint and the adding of Mercy Regional EMS and Scott Hendrickson as parties to the instant litigation. Their claims are therefore untimely, and the Court should affirm the

[8] Complaint filed on March 25, 2019, TR. 1; Motion for Leave to File Second Amended Complaint filed on July 27, 2022, TR. 880; Order granting Motion for Leave, entered September 21, 2022, TR. 1019-21.

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ruling of the McCracken Circuit Court granting Mercy Regional EMS and Scott Hendrickson summary judgment.

The appellate court's holding in *Tallman* does not conflict with precedent and public policy warranting the tolling of the statute of limitations due to minority. Kentucky law considers minority a disability, and as a result, mandates that minors' causes of action are tolled until the removal of their disability. KRS 413.170(1). However, KRS 413.170(1) does not serve to toll the time limitation in cases like the instant action where the disability has been removed – "because the minor[s] clearly had the ability to bring [this] action by [their] parents as next friends, as is evidenced by the instant civil suit wherein [their] parents indeed acted as [their] next of friends." *Cf. Roberts ex rel. Roberts v. George W. Hill & Co.*, 23 S.W.3d 635, 637 (Ky. 2000), *as modified* (Aug. 24, 2000) (interpreting KRS 342.10); *see also Roberts v. George W. Hill & Co.*, 113 S.W.3d 156, 158 (Ky. 2003) (recognizing "[t]he fact remains, however, that his parents were appointed his next friends and acted in that capacity when filing the civil suit on his behalf"). Indeed, in the context of a claim for workers' compensation benefits, this Court has held:

> [W]here an infant child is living with its mother, she becomes its next friend by operation of law for the purpose of prosecuting an action for recovery for the death of its father, and the statute of limitations is not suspended because of infancy under such conditions.

Inland Gas Corp. v. Flint, 269 S.W.2d 239 (Ky. 1954). The same reasoning applies to the application of KRS 413.170(1) to the facts of the instant litigation.

The "rules of procedure and practice apply to infants as well as to adults, except in those instances in which the legislature has seen fit to make a saving or exception or some special provision in the infant's behalf. […] [A] failure to comply therewith is as disastrous in its consequences to an infant as to an adult where the action was legally prosecuted in

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the infant's behalf …." *Chenault v. State Bank & Tr. Co.*, 128 S.W.2d 715, 718 (Ky. 1939). This Court has consistently recognized that "[a]cause of action accrues when a party has the right and capacity to sue[.]" *Azmat as Next Friend of Azmat v. Bauer*, 588 S.W.3d 441, 448 (Ky. 2018) (citing *Creson v. Scott,* 275 S.W.2d 406, 408 (Ky. 1955)). "It is generally accepted rule that the statute of limitations does not begin to run until there is a person in being capable of bringing suit." *Newby's Adm'r v. Warren's Adm'r*, 126 S.W.2d 436, 437 (Ky. 1939). Additionally, "[t]he existence of a person or persons to sue or be sued is involved in the accrual of the cause of action which the statute prescribes as the time of its commencement, for unless there be such a person, a cause of action cannot accrue, and the statute will not commence to run." *Newby*, 126 S.W.2d at 437. In this case, there was such a person to sue and be sued on behalf of the Minor Children as well as to safeguard their rights. *Kash v. Kash's Guardian*, 85 S.W.2d 866, 867 (Ky. 1935) (recognizing "[t]he next friend is regarded as an agent or officer of the court, of the nature of a guardian ad litem, to represent the interest of the infant in the litigation").

While the Court's holding in *Newby* is instructive, it is not dispositive, as the facts before the Court in *Newby* are materially different from the facts of this litigation. In *Newby*, the Court recognized that "[t]he fact that a next friend might have sued [– but did not sue –] does not alter the suspension of the statute during the continuance of the disability." *Newby*, 126 S.W.2d at 438. Unlike here, *Newby* did not involve a situation where a minor child litigated a case for nearly **3.5 years** before adding two additional parties – despite having knowledge of the parties prior to litigation. Indeed, this case goes one step further than *Newby* and involves active litigation by the Minor Children via their Next Friend. The Minor Children showed the ability and capacity to safeguard their rights

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when they initiated litigation via their Next Friend. Consequently, Mercy Regional EMS and Hendrickson are not requesting this Court depart from its holding in *Newby*; rather, consistent with the holding in *Newby*, the statute of limitations accrues for all claims available to a minor child stemming from the same transactional nucleus of facts giving rise on the date the minor child demonstrates the ability and capacity to sue. Here, it was the date of the filing of the Minor Children's original complaint.

Distinguishable from the facts in *Newby*, where the committee had the ability to but never filed a lawsuit on behalf of the incapacitated individual, the Minor Children clearly had the right and capacity to sue Mercy Regional EMS and Hendrickson on March 25, 2019, as evidenced by the filing of their Complaint. (TR. 1). Indeed, the Minor Children moved for leave of court to file their **second** amended complaint, adding Mercy Regional EMS and Hendrickson as parties to this litigation, on June 27, 2022. (TR. 880-918, Motion to Amend). Prior to adding Mercy Regional EMS and Hendrickson as parties to this litigation, the Minor Children, in part,

- served City of Paducah, Kentucky, Tonya Ray, and Southern Health Partners, Inc. with written discovery, (TR. 68-73; TR 418-19);
- subpoenaed records from the Western Kentucky Regional Medical Examiner's Office, (TR. 64-67), Kentucky State Police, (TR. 78-81), and Department of Criminal justice Training, (TR. 420-25; TR. 432-37);
- amended their complaint, (TR. 156-67);
- deposed
    - Joshua Bryant (Deposition of Officer Joshua Bryant, July 14, 2020);
    - Adam Winebarger (Deposition of Adam Winebarger, Oct. 21, 2020);
    - Cassandra Skinner (Deposition of Cassandra Skinner, Oct. 19, 2020);
    - Kevin Wilson (Deposition of Kevin Wilson, October 21, 2020); and
    - Tonya Ray (Deposition of Tonya Ray, Feb. 18, 2021);

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- moved set this matter for trial, (TR. 475-76), which was originally scheduled to take place in April of 2022, (TR. 485-88), (Mercy Regional EMS and Hendrickson added in September of 2022, (TR. 1019-21));
- attended the depositions of
    - Daffeny Sneed Fuson (Deposition of Daffeny Sneed Fuson, Oct. 20, 2020);
    - Travis Fuson (Deposition of Travis Fuson, Aug. 24, 2021);
    - Vincent Velazquez (Deposition of Vincent Velazquez, Dec. 9, 2021);
    - Dr. Edward Reedy (Deposition of Dr. Edward Reedy, Dec. 10, 2021); and
- disclosed their expert witnesses, (TR. 525-74).

Mercy Regional EMS and Scott Hendrickson were not a part of this discovery and litigation. The Minor Children's mother was deposed on July 16, 2020, almost two years before Mercy Regional EMS and Scott L. Hendrickson were added as parties to this lawsuit. (Deposition of Amy Hickman, July 16, 2020). The Minor Children deposed Scott Hendrickson on March 21, 2022, before he was added as a party to this lawsuit as well as another employee of Mercy Regional EMS before filing their second amended complaint adding Mercy Regional EMS as a party to this litigation. (Deposition of Scott Hendrickson, March 21, 2022; Deposition of Jacob Womble, March 21, 2022). The Minor Children also subpoenaed records from Mercy Regional EMS before adding it or Hendrickson as a party to this litigation. (TR. 426-31). Clearly the Minor Children's rights were safeguarded, and the Minor Children were not subject to the disability of minority as evidenced by their extensive discovery and in-depth litigation of their claims against other defendants before adding Mercy Regional EMS and Scott Hendrickson as parties to this lawsuit.

The appellate court's holding in *Tallman* is further consistent with Kentucky public policy against splitting causes of action. "This rule requires a party to assert all causes of action which may arise from a single 'transaction' in a single lawsuit, rather than proceeding piecemeal in multiple actions." *Capital Holding Corp. v. Bailey*, 873 S.W.2d

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187, 194 (Ky. 1994); *Hays v. Sturgill*, 193 S.W.2d 648, 650 (Ky. 1946). "The key inquiry in deciding whether the lawsuits concern the same controversy is whether they both arise from the same transactional nucleus of facts." *Coomer v. CSX Transp., Inc.*, 319 S.W.3d 366, 371 (Ky. 2010). This Court explained,

> The theory for the prohibition against splitting a cause of action is barred largely on the ground that fairness to the defendant and sound judicial administration require that at some point litigation over a particular controversy be brought to a final conclusion.

Watts By and Through Watts v. K, S & H, 957 S.W.2d 233, 236 (Ky. 1997) (citation omitted).

The Court would promote violations of the rule against splitting causes of action by adopting the Minor Children's theory that a Next Friend can bring a lawsuit on behalf of a minor and then the minor can still bring other causes of action up until he/she reaches the age of majority. Under the Minor Children's theory, they could have prosecuted this case and then before they turned 19 years old, bring another lawsuit against either the same defendants alleging new causes of action or another lawsuit against different defendants for the same causes of action. Either way, the rule against splitting causes of action would be violated. Clearly, this Court cannot and should not adopt, in whole or in part, any change of law that would permit a violation of that rule.

Adoption of the Minor Children's proposed theory would also result in the increased potential for inconsistent verdicts and undoubtedly waste judicial resources. For example, a jury could return a verdict in favor of Mercy Regional EMS and Hendrickson in the instant matter, and then the Minor Children subsequently file an action against the other Mercy Regional EMT, Womble, who provided emergent care and treatment to Fuson. The jury in the subsequent matter could return an inconsistent verdict in contrast to the jury

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in this matter. Judicial resources would be wasted on litigating two separate lawsuits involving the same transaction and set of facts.

Likewise, affirming the appellate court's holding in this matter would lead to similar results in other types of litigation. For example, a minor child involved in a multi-vehicle accident could bring claims against one or more drivers as well as the insurers of one or more drivers, settle or try the claims, and then file new causes of action against other drivers or insurers. Likewise, a minor child involved in a medical complication at a hospital could bring a claim against the physician, but not the nurse, medical group, or hospital, resolve the claim against the physician, and then bring a subsequent claim against the nurse, medical group, or hospital. This practice would waste judicial resources and lead to inconsistent results. It could also expose the minor child to a battery of testing by different experts in different litigation regarding the same transactional nucleus of facts as relates to causation and damages. For example, the original defendants could subject the minor children to independent medical evaluations, and the later added defendants request additional or similar independent medical evaluations. As such, the Court should find that any tolling of the minor children's claims was waived by and through the filing of their complaint via their next friend and guardian.

The appellate court's holding is also inconsistent with laches. In *Floyd v. Humana of Virginia, Inc.,* the Court of Appeals of Kentucky held as follows:

> [I]t became readily apparent to appellant on March 26, 1986, at the time of the taking of Dr. Lucas's deposition, that Dr. Lucas did not have anything to do with the alleged negligent treatment of appellant and that two other doctors who were employee/agents of University of Louisville and University of Louisville Hospital, Inc. were, if anyone, the responsible parties. No motion or attempt to amend the complaint was made, however, until September 30, 1988, after the complaint against Dr. Lucas and University of Louisville and University of Louisville Hospital, Inc. had

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> been dismissed. We find such a delay unacceptable and the trial court's refusal to allow the amendment no abuse of discretion.

Floyd v. Humana of Virginia, Inc., 787 S.W.2d 267, 269 (Ky. App. 1989). In that case, the Court held that a delay of **two years and six months** was "unacceptable."

Here, the delay was over **3 years** after the incident when Plaintiffs had sufficient knowledge of Mercy Regional EMS and Scott Hendrickson's involvement, including the Minor Children sending Mercy Regional EMS a prelitigation demand, referring to Mercy Regional EMS in their original complaint, possessing a copy of the Mercy Regional EMS Patient Care Record indicating transport to the hospital not warranted, and deposition testimony of Paducah Police Department officers that Mercy Regional EMS did not believe transport to the hospital was warranted. Mercy Regional EMS and Hendrickson were prejudiced by this delay as the Minor Children were able to conduct discovery and depose Hendrickson and another representative of Mercy Regional EMS without Mercy Regional EMS or Hendrickson being able to participate in any discovery or having knowledge that they were the targets of litigation. Representatives of the Estate and the Minor Children's Next Friend were also deposed without Mercy Regional EMS or Hendrickson's participation. Mercy Regional EMS and Hendrickson were clearly prejudiced by their delayed addition to this lawsuit – all of which was under the control of the Minor Children. As such, the McCracken Circuit Court correctly held that Mercy Regional EMS and Scott Hendrickson were entitled to a dismissal of all claims against them.

Based on the appellate court's decision in *Tallman*, the McCracken Circuit Court correctly held that the Minor Children's prosecution of their claims against some defendants by and through their mother as guardian and next of friend waived the tolling of their statute of limitations for any claims against any other potential defendants,

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including Mercy Regional EMS and Hendrickson, arising from the same transaction or facts. As a result, the Minor Children's claims are untimely, and the Court should affirm the decision of the McCracken Circuit Court granting Mercy Regional EMS and Hendrickson summary judgment.

In this case *sub judice*, the appellate court's holding reveals that there is no material distinction between the facts of the instant matter and *Tallman*.[9] The appellate court found

> We believe the Court in *Tallman* was saying that because the children's guardian raised the parental consortium claim in federal court, *and did not timely raise the claim again in state court*, the minor children lost out on their chance to raise the same cause of action later. **In other words, by first raising this claim against the officer in federal court, the claim would then proceed like any other claim brought by an adult**. This seems to be a reasonable outcome.

Estate of Fuson by Hickman, 2024 WL 3381440, at *6 (emphasis added). There is no material distinction between Kentucky's 90-day savings statute and the one-year statute of limitations. In *Tallman*, the federal court dismissed the state-law claims without prejudice, so absent accrual of the claims via prosecution by their Next Friend, the *Tallman* minor's claims would have been tolled due to their minority. It is not logical that a disability would toll a statute of limitations but not operate to toll a savings statute. Rather, in *Tallman*, as here, the minority did not operate to toll the savings statute because that disability was lifted when the minor pursued their claim via a Next Friend and Guardian. There is also no material distinction in a minor's claim brought by an adult in federal court as opposed to state court. In both instances, the minor's claim should be treated like any other claim brought by an adult when the minor proceeds via a Next Friend or Guardian. *Chenault*, 128

[9] As recognized by the appellate court, the *Tallman* holding is not binding on the Kentucky Court of Appeals nor this Court.

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S.W.2d at 718. As such, the facts of this matter are more similar than dissimilar from the facts presented in *Tallman* – which, of course, is unpublished and non-binding on this Court.

Mercy Regional EMS and Scott Hendrickson's application of *Tallman* to the instant litigation is also in line with the plain language of KRS 413.170(1). The tolling statute states, in pertinent part, "the action may be brought within the same number of years after the removal of the disability or death of the person …." KRS 413.170(1). Thus, by the plain language of the statute, tolling does not apply when the disability is removed.

By filing a civil lawsuit via their Next Friend and Guardian, the Minor Children demonstrated the right and capacity to sue, removing their disability. The Minor Children employed an attorney, contracted to pay him a fee, and prosecuted the claim for their benefit. The Minor Children had one year from the date they filed their original complaint (March 25, 2019, TR. 1) to file all claims stemming from the same transactional nucleus of facts giving rise to their original complaint. Despite sending Mercy Regional EMS a preservation letter, the Minor Children made the strategic decision not to file claims against Mercy Regional EMS in 2019, and instead sued and litigated claims against various other defendants who have since settled. The Minor Children strategically chose not to add Mercy Regional EMS or Scott Hendrickson as parties to this litigation until over after **3 years** after they filed their complaint, conducted significant discovery, and engaged in considerable litigation – all to the exclusion of Mercy Regional EMS and Scott Hendrickson. Mercy Regional EMS and Scott Hendrickson were not afforded the opportunity to depose the representatives of the Estate or the minor children's Next Friend. Even more unduly prejudicial, the Minor Children were allowed to depose Hendrickson

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and another Mercy Regional EMS employee before adding Mercy Regional EMS and Scott Hendrickson as parties. For these reasons, the Minor Children's rights and interests were well-represented by their Next Friend, and tolling the Minor Children's statute of limitations in this case would not further the purposes of KRS 413.170.

Mercy Regional EMS and Scott Hendrickson's interpretation of KRS 413.170 is further consistent with Kentucky common law. In 1896, the Court recognized "[w]ithout statutory restraint, a guardian may compromise, settle, and release claims and demands due to, or made by or on behalf of, his ward, and the ward will be bound thereby, unless it is done in bad faith, or in fraud of his rights." *Manion v. Ohio Val. Ry. Co.*, 36 S.W. 530, 531 (Ky. 1896); *Jarrett v. Louisville & N.R. Co.*, 257 S.W. 17, 18 (Ky. 1923) (same); *see also Willett v. Triplett*, 431 S.W.2d 502, 505 (Ky. 1968) (recognizing "[i]t is significant that certain claims of the ward may be effectively compromised without any order of the court"). A guardian can compromise controversies pertaining to a minor when the minor's interest is subserved, *cf. Willett*, 431 S.W.2d at 505, and that occurred in this action when the Minor Children thoroughly litigated (and settled) certain claims before adding Mercy Regional EMS and Scott Hendrickson as parties. There is no bad faith nor fraud in this action. Consistent with Kentucky common law, as well as the plain language of KRS 413.170, the Minor Children's statute of limitations against Mercy Regional EMS and Scott Hendrickson commenced to run when they demonstrated the ability and capacity to file suit by filing suit via their Next Friend. As the Minor Children filed their claims after the one-year statute of limitations expired, the McCracken County Circuit Court correctly held that the Minor Children's claims against Mercy Regional EMS and Scott Hendrickson were filed outside of the one-year statute of limitations.

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CONCLUSION

The McCracken County Circuit Court correctly held that the Minor Children's claims against Mercy Regional EMS and Scott Hendrickson were filed outside of the one-year statute of limitations, and that the Minor Children's prosecution of their loss of consortium claims against some defendants waived the tolling of the statute of limitations for any and all claims arising from the same transactional nucleus of facts. Accordingly, Mercy Regional EMS and Scott Hendrickson respectfully request that the Supreme Court of Kentucky reverse the opinion of the Kentucky Court of Appeals with respect to the tolling of the Minor Children's claims and affirm the ruling rendered by the McCracken County Circuit Court.

Respectfully submitted,

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